

		because Respondent has not yet appeared and therefore has no address of record. Based on the foregoing, the Court will CONTINUE the hearing as set forth above for Petitioner to provide proper notice of hearing to Respondent. The proof of service must be filed at least five court days before the hearing. Petitioner is ordered to give notice.
4.	<i>Jones vs. Safeco Insurance Company of America</i> <i>2026-01561751</i>	Before the court is a petition by "Kassidy Jones, Urszula Jones, Oliver Jones by and through is guardian and Landon Jones by and through his guardian" (collectively, Petitioners) to confirm a contractual arbitration award entered in their favor and against respondent Safeco Insurance Company of America (Respondent) on December 18, 2025. As set forth herein, the petition is DENIED WITHOUT PREJUDICE to a new or amended petition addressing the deficiencies identified below. The current petition seeks to confirm an arbitration award in Petitioners' favor and against Respondent as follows: Kassidy Jones - \$30,017.67, Urszula Jones - \$26,422.34, Oliver Jones - \$7,545.67 and Landon Jones - \$13,590.66. Although the petition states two of the four Petitioners are two minors and it is brought on their behalf by and through their guardian, there has been no order appointing a guardian ad litem for the minors. "When a minor, a person who lacks legal capacity to make decisions, or a person for whom a conservator has been appointed is a party, that person shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case." (Code Civ. Proc., § 372(a).) Further, there is no arbitration agreement attached to the petition. Paragraph 4 of the petition states "a copy of the agreement [to arbitrate] is submitted as Attachment 4(b) and incorporated herein by this reference." Attachment 4(b), however, is the Judicate West agreement and not the arbitration agreement between Petitioners and Respondent. (See Code Civ. Proc., §1285.4 [petition shall "Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement"].) Presumably, the arbitration agreement is included in the insurance policy. Finally, there is no evidence of proper service of the petition and notice of hearing. The petition to confirm an arbitration award and the notice of hearing on such petition must be served at least 10 days before the hearing. (Code

		Civ. Proc. § 1290.2.) Proof of such service must be filed with the court at least five court days before the hearing. (Cal. Rules Ct., rule 3.1300(c).) Code of Civil Procedure section 1290.4 establishes the requirements regarding the method of service for a petition to confirm an arbitration award: "(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. "(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: "(1) Service within this State shall be made in the manner provided by law for the service of summons in an action. "(2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the equivalent of such service by mail. Proof of United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision of this title, if service is made in the manner provided in this paragraph, the petition may not be heard until at least 30 days after the date of such service. "(c) If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code." Here, the proof of service attached to the petition shows service by email to the Law Office of Jeffrey Cabot Myers. There are multiple problems with this. First, that is a different firm than the firm on whom the arbitrator served the arbitration award on Respondent's behalf. Second, there is no proof of service showing the petition was served on Respondent in accordance with section 1290.4—i.e., in the manner provided for service of summons. Summons generally cannot be served on counsel by eservice absence an agreement.
--	--	---

		Moreover, there is no indication Petitioners served notice of this hearing. The court endeavored to serve notice on all parties identified in the arbitration award, but the foregoing switch in counsel has complicated those efforts. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE to all Petitioner to address these concerns through a new filing. Petitioners are ordered to give notice.
5.	<i>In re: 206-208 W. Electric Ave., La Habra, CA 90631</i> <i>2026-01574411</i>	Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 206-208 W. Electric Avenue, La Habra, California 90631, and owned by judgment debtors the Peter Seh Living Trust 2001 dated September 13, 2001, and Jonathan Seh (collectively, Debtors). The order to show cause was entered on June 4, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). As more fully set forth below, the hearing on the order to show cause is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Creditors to establish proper service of all necessary documents in accordance with Code of Civil Procedure section 704.770. The court previously found Creditors' application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditors to give notice. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court specifically stated in the order that all parties must be served as required by Code of Civil Procedure section 704.770. Here, Creditors fail to establish proper service in accordance with Code of Civil Procedure section 704.770. That code section required Creditors to serve (1) a copy of the order to show cause, (2) a copy of the application of the judgment creditor for the order to show cause, and (3) a copy of the notice of the hearing in the form prescribed by the Judicial Council. Those documents must be served on the Debtors either personally or by mail. Those same documents also must be personally served on any occupant of the dwelling or, if there is no occupant present at the time service is attempted, the documents must be posted in a conspicuous place at the dwelling. Creditors filed proofs of service showing they effectuated substitute service on the occupants of the property by serving the application for order of sale and the order to